Showing contexts for: **specific performance property** in Rohit Kochhar vs Vipul Infrastructure Developers Ltd on 26 November, 2024

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23. This Court in Babu Lal (supra), upon a combined reading of Sections 22 and 28(3) of the **Specific** Relief Act respectively and Section 55 of the Transfer of Property Act, observed that the it was only "in an appropriate case" that the plaintiff was required to separately seek the relief of possession, partition, or separate possession, as the case may be, along with the relief of **specific performance**. The Court observed that in other cases, say for example a case where the exclusive possession of the suit property is with the contracting party, a decree for **specific performance** of the contract of sale simpliciter, without **specific**ally providing for delivery of possession, may give complete relief to the decree-holder. This, the Court observed, was the mandate flowing from Section 55 of the Transfer of Property Act. The relevant observations made by the Court are extracted hereinbelow:

> 12. The section enacts that a person in a suit for **specific performance** of a contract for the transfer of immovable property, may ask for appropriate reliefs, namely, he may ask for possession, or for partition or for separate possession including the relief for **specific performance**.

These reliefs he can claim, notwithstanding anything contained in the Code of Civil Procedure, 1908, to the contrary. Sub-section (2) of this section, however, **specific**ally provides that these reliefs cannot be granted by the court, unless they have been expressly claimed by the plaintiff in the suit. Sub-section (2) of the section recognised in clear terms the well-established rule of procedure that the court should not

entertain a claim of the plaintiff unless it has been **specific**ally pleaded by the plaintiff and proved by him to be legally entitled to. The proviso to this sub-section (2), however, says that where the plaintiff has not **specific**ally claimed these reliefs in his plaint, in the initial stages of the suit, the court shall permit the plaintiff at any stage of the proceedings, to include one or more of the reliefs, mentioned above by means of an amendment of the plaint on such terms as it may deem proper. The only purpose of this newly enacted provision is to avoid multiplicity of suits and that the plaintiff may get appropriate relief without being hampered by procedural complications.

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13. The expression in sub-section (1) of Section 22 "in an appropriate case" is very significant. The plaintiff may ask for the relief of possession or partition or separate possession "in an appropriate case". As pointed out earlier, in view of Order 2 Rule 2 of the Code of Civil Procedure, some doubt was entertained whether the relief for **specific performance** and partition and possession could be combined in one suit; one view being that the cause of action for claiming relief for partition and possession could accrue to the plaintiff only after he acquired title to the property on the execution of a sale deed in his favour and since the relief for **specific performance** of the contract for sale was not based on the same cause of action as the relief for partition and possession, the two reliefs could not be combined in one suit. Similarly, a case may be visualised where after the contract between the plaintiff and the defendant the property passed in possession of a third person. A mere relief for **specific performance** of the contract of sale may not entitle the plaintiff to obtain possession as against the party in actual possession of the property. As against him, a decree for possession must be **specific**ally claimed or such a person is not bound by the contract sought to be enforced. In a case where exclusive possession is with the contracting party, a decree for **specific performance** of the contract of sale simpliciter, without **specific**ally providing for delivery of possession, may give complete relief to the decree-holder. In order to satisfy the decree against him completely he is bound not only to execute the sale deed but also to put the property

in possession of the decree-holder. This is in consonance with the provisions of Section 55(1) of the Transfer of Property Act which provides that the seller is bound to give, on being so required, the buyer or such person as he directs, such possession of the property as its nature admits.

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27. Further, on the aspect of Section 22 of the **Specific** Relief Act, the Court took the view that although the said provision is enabling in nature yet as per the mandate of sub-section (2), the relief of possession of immovable property which is the subject matter of the agreement for sale cannot be granted by the court unless the relief for possession is **specific**ally prayed for. The relevant observations are extracted hereinbelow:

> "17. It may be seen that sub-section (1) is an enabling provision. A plaintiff in a suit of **specific performance** may ask for further reliefs mentioned in clauses (a) and (b) thereof. Clause (a) contains reliefs of possession and partition and separate possession of the property, in addition to **specific performance**. The mandate of sub-section (2) of Section 22 is that no relief under clauses (a) and (b) of sub-section (1) shall be granted by the court unless it has been **specific**ally claimed. Thus it follows that no court can grant the relief of possession of land or other immovable property, subject-matter of the agreement for sale in regard to which **specific performance** is claimed, unless the possession of the immovable property is **specific**ally prayed for.